

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CLCL055824: WELLS FARGO BANK, N.A. vs HERIBERTO AVELAR, AN
INDIVIDUAL**

**08/10/2026 in Department 42
Motion for Summary Judgment**

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

For the purposes of this Motion only, the Court finds the following undisputed material facts submitted by plaintiff Wells Fargo Bank, N.A. ("UMFs") are undisputed and ESTABLISHED by the cited evidence: nos 1-28.

The moving papers show that there is no triable issue of material fact, and Plaintiff is entitled to summary judgment as a matter of law. Defendant Heriberto Avelar has not filed an opposition to the motion and, as such, has failed to meet his burden to show the existence of a triable issue of material fact. Therefore, Plaintiff's motion for summary judgment is GRANTED.

Plaintiff's proposed judgment, except the request to be awarded attorney fees and costs, will be signed, with moving party directed to give notice.